

Standing

Topic 6 turns to the question of standing. Standing refers to the idea that a person who seeks to challenge a matter before a court of law must have a sufficient connection to it. This topic discusses common law tests and their relationship to the concept of standing under the ADJR Act. It also looks at the related matters of joinder, amicus curiae and the Attorney-General's Fiat.

Standing refers to the right of a plaintiff to seek a remedy. Only a person who is, or is likely to be, affected by administrative conduct has standing, or locus standi, which means the right to institute legal proceedings to challenge the conduct. Standing rules determine who can and cannot have access to remedies in administrative law. They have a 'gatekeeper' function, excluding people who lack a sufficient interest from commencing and maintaining public law litigation.

Standing is closely associated with the topic of justiciability: generally, a matter is not justiciable, at the instance of the plaintiff, if the plaintiff lacks standing. Also, federally, it is related to the issue of judicial power: an exercise of judicial power may not be invoked if a plaintiff lacks standing to pursue a matter for then the matter may be hypothetical as far as that plaintiff is concerned.

The general rule is that there is a need for a 'particular or special' interest to be shown before a plaintiff may sue. In *Pape v Commissioner of Taxation* [2009] HCA 23 at [47], French CJ said this (in a case where the plaintiff challenged the federal government's tax bonus):

'There is a long history of judicial caution in relation to the standing of private individuals to challenge the validity of statutes absent some particular or special interest to be advanced by such challenge.'

In most public law cases, the main question is when may a private individual seek relief in order to protect public rights. The basic rule was stated in *Boyce v Paddington Borough Council* [1903] 1 Ch 109, 114 (per Buckley J). Australian case law has developed the 'special interest' test.

Historically, the technical differences between the common law writs (see Topic 10 Reasons and Remedies) were subject to a different standing test. Over time the differences have become less significant and are now virtually indistinguishable.

S3(4) of the ADJR Act requires that the applicant is a 'person aggrieved'. There is now thought to be no difference between the standing rules at common law and the definition of a 'person aggrieved'. Cases in either category therefore illuminate common principles.

The case law

The general rule was repeated by Gibbs J in *Conservation Foundation v Commonwealth* (1980) as follows: 'A private citizen who has no special interest is incapable of bringing proceedings...unless, of course, he is permitted by statute to do

so'. He added (at 530): 'A natural person does not acquire standing simply by reason of the fact that he holds certain beliefs and wishes to translate them into action...'

In *Bateman's Bay Aboriginal Land Council v The Aboriginal Community Benefit Fund Pty Ltd* (1998) 194 CLR 247 at 275 McHugh said: 'Absent interference or threatened interference with a private legal right (I use the term 'right' to include those interests and legitimate expectations that the law protects), an ordinary member of the public generally has no standing in the civil courts'. He said: 'Those courts exist to protect the legal rights of individuals, not to ensure that individuals or public officials obey the law'.

The plaintiffs succeeded in *Onus v Alcoa of Australia Ltd* (1981) 149 CLR 27 because they had a greater interest than other members of the public (the relics in question being of cultural and spiritual importance to them). It was held (at 37) that '...a special interest is none the less sufficient if it is accompanied by an emotional or intellectual concern'.

On the other hand, the plaintiff association did not succeed on the question of standing in *Right to Life Association (NSW) Inc v Secretary, Department of Human Services and Health* (1995) 56 FCR 50 where Lockhart J (at 67-8) in the Full Federal Court said: '...it does not follow that the right to speak and to influence opinions of the public and of politicians may be transmuted into a right of standing to pursue proceedings in courts of law'.

Refer again to *Onus v Alcoa of Australia Ltd*, above, at 35, where Gibbs CJ said this:

On the one hand it may be thought that in a community which professes to live by the rule of law the courts should be open to anyone who genuinely seeks to prevent the law from being ignored or violated. On the other hand, if standing is accorded to any citizen to sue to prevent breaches of the law by another, there exists the possibility, not only that the processes of the law will be abused by busybodies and cranks and persons actuated by malice, but also that persons or groups who feel strongly enough about an issue will be prepared to put some other citizen, with whom they have had no relationship, and whose actions have not affected them except by causing them intellectual or emotional concern, to very great cost and inconvenience in defending the legality of his actions.

If a private individual is unable to demonstrate a special interest not shared by the rest of the community, they lack standing. An individual may sue to protect public rights in the name of the Attorney-General if that individual obtains the Attorney-General's fiat.

The Attorney-General has standing *ex officio* (by virtue of his or her office) to seek an injunction to protect public rights. The resulting action is called a *relator* action, because the plaintiff sues in the Attorney-General's name (*ex relatione AG*), and has the conduct of the action. The Attorney-General's refusal to grant a fiat cannot be subject to judicial review:

- *Gouriet v Union of Post Office Workers* [1978] AC 435.

Special rules govern the joinder of additional parties to proceedings, and permission for interested persons or organisations to appear and make submissions as amicus curiae (friends of the court).

Activity

Exercise 6.1

- Why are there rules relating to standing?
- What is the criterion that must generally be satisfied in order to have standing?
- Should there be any such rules?

Exercise 6.2

Identify the contribution that the following cases make to the rules of standing:

- Conservation Foundation v Commonwealth (1980) 146 CLR 493
- Onus v Alcoa of Australia Ltd (1981) 149 CLR 27
- Bateman's Bay Aboriginal Land Council v The Aboriginal Community Benefit Fund Pty Ltd (1998) 194 CLR 247
- Shop Distributive and Allied Employees Assoc v Minister for Industrial Affairs (SA) (1995) 183 CLR 552
- Australian Institute of Marine and Power Engineers v Sec, Department of Transport (1986) 71 ALR 73
- North Coast Environmental Council v Minister for Resources (1994) 127 ALR 617
- Right to Life Assoc (NSW) v Sec, Commonwealth Department of Human Services and Health (1995) 128 ALR 258

Exercise 6.3

Provide a criticism of the result reached in Right to Life Association (NSW) Inc v Secretary, Department of Human Services and Health (1995) 56 FCR 50 in light of the decision in Onus v Alcoa of Australia Ltd (1981) 149 CLR 27. Why do you think one case was decided one way and the other differently? Give reasons for your view(s).

Exercise 6.4

Explain the importance of *Re McBain; Ex parte Australian Catholic Bishops Conference* (2002) 209 CLR 372, for the use of the Attorney General's Fiat.

Does this rule have relevance in a modern justice system?

Exercise 6.5

In what circumstances is the *amicus curiae* rule useful? Explain and give examples.